

24STCV21046 24STCV21046

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-25

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Case Number: 24STCV21046 Hearing Date: June 25, 2026 Dept: 512

HEARING DATE: Thurs., June 25, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Periodic Holdings v. McMurray, et

al. COMP. FILED: 08-20-24

CASE NUMBER: 24STCV21046

NOTICE: NO

PROCEEDINGS:

MOTIONS

TO DEEM REQUESTS FOR ADMISSIONS ADMITTED

MOVING PARTY: Plaintiff Periodic Holdings, Inc.

RESP. PARTY: None

MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED;

REQUEST FOR SANCTIONS

(CCP § 2033.280)

TENTATIVE RULING:

Plaintiff Periodic Holdings, Inc.'s

unopposed Motion to Deem Requests for Admission Admitted is GRANTED as to

Defendant Megan McMurray. Plaintiff's request for sanctions is GRANTED in the

amount of \$1010 as against defendant McMurray.

Plaintiff Periodic Holdings, Inc.'s

unopposed Motion to Deem Requests for Admission Admitted is GRANTED as to Defendant Chad Correia. Plaintiff's request for sanctions is GRANTED in the amount of \$1010 as against defendant Correia.

Moving party is ordered to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of June 22, 2026 ☐ Late ☒

None

REPLY: Filed

on June 17, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On August 20, 2024, Plaintiff Periodic Holdings ("Plaintiff") filed the instant action against Defendants Megan McMurray, Chad Correia, and Continental Stock Transfer & Trust, and Does 1-20, alleging causes of action for Misappropriation of Funds and Conversion; Unlawful Acts with Securities; Violation of Penal Code section 496(a); Conspiracy; Unfair & Fraudulent Business Practices; Unjust Enrichment; and Temporary Restraining Order and Preliminary Injunction.

On June 10, 2025, the Court granted McMurray and Correia's Motions to Set Aside Default. (6/10/25 Order.)

On June 20, 2025, McMurray and Correia filed Answers.

On April 20, 2026, the Court granted McMurray and Correia's counsel of record's Motion to be Relieved as Counsel for Defendants. (4/20/26 Order.)

On May 18, 2026, Plaintiff filed the instant Motions to Deem Requests for Admission ("RFAs") Admitted (the "Motions") and request for sanctions against McMurray and Correia.

On May 26, 2026, the Court denied Plaintiff's Ex Parte Application requesting an order shortening time and leave to hear Plaintiff's Motions. (5/26/26 Order.)

On May 27, 2026, the Court granted Plaintiff's Ex Parte Application requesting an order shortening time and leave to hear Plaintiff's Motions. (5/27/26 Order.)

On June 17, 2026, Plaintiff filed a Notice of Non-Opposition and Reply in support of both Motions.

To date, no Opposition to the Motions have been filed.

II. Procedural Issues

As an initial matter, the Court notes that service of the Motions was defective as the Motions were not served on McMurray and Correia's counsel of record at the time of service. However, given that Plaintiff's Reply includes a declaration made under penalty of perjury of proper service of the Motions and notice of hearing following the Court's 5/27/26 granting of Plaintiff's Ex Parte Application, the Court addresses the Motions on the merits.

III.

Legal

Standard

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

IV.

Discussion

A.

Request

for Admissions

Plaintiff contends that McMurray and Correia failed to timely respond to the RFAs on or by the statutory deadline.

As to McMurray, Plaintiff’s counsel served McMurray with the RFAs by email on McMurray’s former counsel on April 15, 2026. (Motion, Arad Decl., ¶ 3, Exh. A.) As of May 16, 2026, Plaintiff’s counsel had not received any responses. (Motion, Arad Decl., ¶¶ 5, 8.) Thus, Plaintiff is entitled to an order deeming RFAs admitted.

As to Correia, Plaintiff’s counsel served Correia with the RFAs by email on Correia’s former counsel on April 15, 2026. (Motion, Arad Decl., ¶ 3, Exh. A.) As of May 16, 2026, Plaintiff’s counsel had not received any responses. (Motion, Arad Decl., ¶¶ 5, 8.) Thus, Plaintiff is entitled to an order deeming RFAs admitted.

B.

Sanctions

Plaintiff seeks monetary sanctions of

\$2,910 against McMurray, reflecting three hours billed at \$475.00 per hour to bring the instant Motion, three hours billed at \$475.00 to review any opposition and prepare a reply, plus \$60.00 in filing fees. (Motion, Arad Decl., ¶ 10.) Plaintiff also seeks monetary sanctions of \$2,910 against Correia, reflecting three hours billed at \$475.00 per hour to bring the instant Motion, three hours billed at \$475.00 to review any opposition and prepare a reply, plus \$60.00 in filing fees. (Motion, Arad Decl., ¶ 10.)

In a joint Reply, Plaintiff adjusts the sanctions request to be a total amount of \$7,245.00 as to both Motions. (Reply, Arad Decl., ¶¶ 19-20.)

Sanctions are mandatory against the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted and the motion to compel responses to interrogatories. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Here, the Court finds the Notice of Motion for both Motions comply with Code of Civil Procedure section 2023.040.

Given the similarity of the motions to each other, the shared hearing date, the lack of Oppositions and Replies, and the straightforward nature of the Motions, Plaintiff's request for monetary sanctions against defendant McMurray is GRANTED in the reduced amount of \$1010.00, reflecting 2.0 hours incurred at \$475.00 per hour plus \$60.00 in filing fees. Plaintiff's request for monetary sanctions against defendant Correia is GRANTED in the reduced amount of \$1010.00,

reflecting 2.0 hours incurred at \$475.00 per hour plus \$60.00 in filing fees.

Finally, the Court

is not persuaded by the arguments for additional sanctions in the Reply brief. The Court finds that any attempt to increase additional sanctions in the reply brief would violate the due process rights of the opposing party.

Thus, the

request for sanctions is GRANTED in the reduced amount of \$1010.00 as against defendant Correia and \$1010.00 as against defendant McMurray.

C.

Conclusion

& Order

For the foregoing reasons, Plaintiff

Periodic Holdings, Inc.'s unopposed Motion to Deem Requests for

Admission Admitted is GRANTED as to Defendant Megan McMurray. Plaintiff's request for sanctions is GRANTED in the amount of \$1010 as against defendant McMurray.

Plaintiff Periodic Holdings, Inc.'s unopposed

Motion to Deem Requests for Admission Admitted is GRANTED as to Defendant

Chad Correia. Plaintiff's request

for sanctions is GRANTED in the amount of \$1010 as against defendant Correia.

Moving party is ordered to give

notice.